

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

JUSTIN KEITH FELICIANO,

Respondent

) Case Number: FCS-17-352210

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by
Zoom video. If a party chooses to appear by video, that party must abide by the Notice and
Instructions for Remote Appearances in San Francisco Family Court set forth above.**

A. Procedural History

- 1) The parties to this proceeding are Respondent, Justin Feliciano (Father) and Respondent, Alba Martinez (Mother). The parties have one minor child named Janessa Feliciano (02/11/14).
- 2) On July 29, 2026, Father filed an emergency Request for Order seeking a modification of the existing child custody and visitation orders. The Court granted Father's request for an order shortening time for service and hearing and set the matter for Readiness on August 10, 2026. No additional orders were made.
- 3) On August 10, 2026, both parties appeared at the "Readiness" hearing and the parties were referred to FCS Mediation to occur on August 17, 2026 and set a return hearing for September 8, 2026.

- 1 4) On August 17, 2026, the parties attended FCS Mediation and an agreement was not reached.
- 2 5) On September 8, 2026, the matter was heard before JPT Harding. JPT Harding continued the
- 3 matter to September 17, 2026 for this Court to determine the scope of the Tier II interview and to
- 4 see if a sooner trial date is available. The matter was set for trial on November 6, 2026 at 1:45
- 5 p.m.

6 **B. Findings and Order**

- 7 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
- 8 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
- 9 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
- 10 child(ren) is the United States.

- 11 **2) The parties are ordered to appear.**
- 12
- 13
- 14
- 15
- 16
- 17
- 18
- 19
- 20
- 21
- 22
- 23
- 24
- 25
- 26
- 27
- 28
- 29